

Representation / Objection Regarding Non-Service of Individual Notice and Non-Disclosure of Revised Sanctioned Plans of the project GRANDSTAND sector 99A ,Gurugram

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[Annexures/ Attachments](#)

In the matter of: ATS Grandstand Phase-I, Sector 99A, Gurugram

Unit: Unit No. 3051, Tower No. 03, Type-D

Allottees / Complainants: Mr. Vijyant Agarwal and Mrs. Vineeta Agarwal

Respondent / Promoter: ATS Realworth Pvt. Ltd. / Hasta Infrastructure Pvt. Ltd. / Homekraft Infra Pvt. Ltd., as applicable

Complaint No.: 4463 of 2021

Order: HARERA, Gurugram order dated 18.04.2024

In reply to: ATS document 1-Response to the complaint to Vijyant Agarwal (with enclosures)

Subject

Reply to ATS response dated on or about May 2026 — for protection of the allottee's crystallised rights under the BBA and immediate execution/compliance of the HARERA order dated 18.04.2024.

Most Respectfully Submitted

1. Preliminary submission

1.1. The present submission is being made by the existing allottee/complainant, namely **Mr. Vijyant Agarwal**, along with co-allottee **Mrs. Vineeta Agarwal**, in respect of **Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram**.

1.2. This submission is not being made in a representative capacity for allottees generally. It is being made to protect the vested, contractual, statutory and adjudicated rights of the present existing allottee/complainant in respect of the above-mentioned unit.

1.3. The complainant's objection is directed not against lawful completion in abstract, but against any attempt by ATS/Hasta/Homekraft to use revised plans, increased FAR/density, change of developer, pending approvals, alleged intimation or any internal restructuring as a ground to dilute, postpone, vary, defeat or avoid:

- the rights already crystallised under the Agreement to Sell / BBA;
- the possession obligation;
- the pre-EMI/EMI obligation;
- the delay-compensation/liability;
- the right to information and stage-wise completion schedule;
- the right to receive lawful possession only after occupation/completion approval and completion of essential services; and
- the binding directions already passed by HARERA, Gurugram on 18.04.2024.

1.4. Any reply filed by ATS is liable to be considered only subject to the above vested rights of the present allottee and the binding HARERA order.

2. Effect of the HARERA order dated 18.04.2024

2.1. The HARERA order dated 18.04.2024 in Complaint No. 4463 of 2021 has already recognised the complainants as allottees of the project and has recorded the relevant details of the unit, project, BBA, possession date and payment arrangement.

2.2. The order records, inter alia, that:

- the project is **ATS Grandstand Phase-I, Sector 99A, Gurugram;**
- the project area is **11.5875 acres;**
- the unit is **Unit No. 3051, 5th Floor, Tower No. 03, Type-D;**
- the Agreement to Sell / BBA was executed on **25.10.2018;**
- the due date for possession was **30.06.2023;**
- the payment plan was a **subvention payment plan;**
- the total sale consideration was recorded as **Rs. 83,36,769/-;**
- the amount paid by the complainants was recorded as **Rs. 7,20,000/-;** and
- the occupation certificate was not obtained as on the date of the order.

2.3. The said order further records that despite repeated opportunities, the respondent did not file a written reply and its defence was struck off. The order also records that the relevant documents filed by the complainants were on record and their authenticity was not in dispute.

2.4. The order also records the builder's own pre-EMI commitment in the following substance: the developer was to pay pre-EMI every month to the buyer or directly to the bank, as the case may be, against the apartment till offer of possession in terms of Clause 7.1 of the Agreement for Sale.

2.5. The order records that during the proceedings, the counsel for the respondent stated before the Authority that the respondent was ready to pay the pre-EMI till offer of possession.

2.6. Accordingly, the binding directions of HARERA include:

- return of the pre-EMI already paid by the complainants to the financial institution on behalf of the respondent;
- further payment of pre-EMI/EMI till offer of possession directly to the financial institution as per the agreed terms of the letter dated 23.10.2018;
- disclosure of the status of completion certificate;
- disclosure of the date of physical possession of the unit;
- disclosure of details of the escrow account of the project including credit and debit records;
- compliance within the time stipulated in the order;
- handover of physical possession of the allotted unit as per the terms and conditions of the buyer's agreement after obtaining occupation certificate from the concerned department; and
- action by the planning branch in case of violation of the provisions of the Act.

2.7. Therefore, the present reply/submission is not merely about revised plans or change of developer. The central issue is that the complainant's existing BBA rights and the HARERA order must first be complied with and cannot be defeated by any subsequent development.

2.8. The **certified copy** of the order further records rectification proceedings dated **08.08.2024** under Section 39 of the Act, wherein the application for rectification was **allowed**. It clarifies that Rs. 7,20,000/- recorded in the order is the **booking amount**, that the balance was routed through **PNB Housing Finance Ltd.**, and that the respondent is bound to pay pre-EMI till offer of possession on the amount received from the financial institution. This certified record reinforces that the order is binding, executable, and not limited to the booking amount alone.

3. The 30-day and 90-day timelines under the HARERA order have already expired

3.1. The HARERA order directed disclosure of completion-certificate status, date of physical possession and escrow account details within **30 days**. The said period has long expired.

3.2. The order also granted **90 days** for compliance of the directions, failing which legal consequences were to follow. That period has also long expired.

3.3. ATS/Homekraft cannot now rely upon revised plans, change of developer, later permissions, alleged intimation, website upload or internal project restructuring to avoid the consequences of non-compliance with the already passed order.

3.4. Any pending change-of-developer or revised-plan process must be made expressly subject to immediate compliance with the HARERA order dated 18.04.2024.

4. ATS reply does not answer the existing adjudicated liability

4.1. ATS has supplied/referred to certain documents such as revised plan approval, comparative chart, unit-plan comparison, earlier approved site plan, revised site plan and alleged intimation. Even if ATS claims to have placed certain documents on record, without prejudice to the questions of completeness, authenticity, individual service and legal adequacy of disclosure, such documents do not discharge ATS's binding monetary and disclosure obligations under the HARERA order.

4.2. The filing of documents regarding revised plans or change of developer is not the same as compliance with the order. ATS must separately prove:

- how much pre-EMI/EMI has been paid;
- how much remains outstanding;
- to whom it was paid;
- whether future EMI/pre-EMI is being paid directly to the financial institution;
- whether completion-certificate status has been disclosed;
- whether the date of physical possession has been disclosed;
- whether escrow account details with credit and debit records have been disclosed; and
- whether possession is ready in terms of the BBA and after obtaining occupation certificate.

4.3. In the absence of such proof, ATS's reply is incomplete and evasive and should not be treated as compliance.

5. Change of developer cannot dilute the existing allottee's rights

5.1. The proposed or approved change of developer from Hasta/ATS to Homekraft, or any similar arrangement, cannot operate as a novation, waiver, substitution or dilution of the complainant's existing rights.

5.2. The allottee never agreed that a change of developer would extinguish or reduce the liabilities of the existing promoter or postpone the possession timeline.

5.3. The new/promoted/transferee entity, if permitted to continue the project, must take the project subject to all existing obligations and liabilities, including:

- BBA obligations;
- pre-EMI/EMI obligations;
- delay liability;
- possession obligation;
- construction-quality obligation;
- defect-liability obligation;
- statutory disclosure obligation;
- escrow/fund-utilisation obligation;

- obligation to provide amenities and services as promised;
- obligation to hand over possession only after occupation certificate and completion of essential services; and
- obligation to comply with the HARERA order dated 18.04.2024.

5.4. No change of developer can grant an extension of time or a fresh start against the existing allottee. The transferee/intending promoter must be bound by all pending obligations of the erstwhile promoter and by the consequences of breach or delay.

6. Revised plan / increased FAR / increased density cannot prejudice Unit No. 3051

6.1. ATS's own reply bundle refers to a revised building-plan approval, comparative chart, comparative unit plans, earlier approved site plan and revised site plan. Therefore, the matter is not a mere formality.

6.2. If the revised plan increases FAR, built-up intensity, density, number of units, population load, service load, tower load, parking load, common-area load or amenity-sharing load, it directly affects the complainant as an existing allottee.

6.3. The complainant booked the unit on the basis of the project as represented and agreed under the BBA, including the project layout, density, amenities, specifications, common facilities, services, possession schedule and character of the project. A later increase in FAR/density or alteration of the layout cannot be imposed on the complainant without protecting his rights.

6.4. The complainant therefore seeks a certified, unit-specific and tower-specific impact report addressing whether the revised plan prejudices the following matters. Any report filed by ATS shall be without prejudice to the complainant's right to dispute its correctness, completeness, independence and legal sufficiency, and shall not constitute consent to the revised plan or withdrawal of objection unless expressly given in writing after complete individual disclosure:

- Unit No. 3051;
- Tower No. 03;
- unit layout;
- unit area;
- floor location;
- balcony/ventilation/light/privacy;
- common access;
- parking entitlement/availability;
- fire safety;
- water, electricity, sewerage and STP capacity;
- internal circulation and roads;
- club/community/common amenities;
- green/open/common areas;
- possession timeline; and
- the monetary rights already recognised by HARERA.

6.5. Until such unit-specific confirmation is supplied, the complainant's objection and reservation must be treated as continuing.

6.6. ATS's own reply bundle and comparative chart further confirm material prejudice, including:

- increase in total main units from **522 to 734**;
- reduction in ECS parking from **999 to 957** despite higher unit count;
- reduction in open/green area from **14345.86 sqm to 10934.25 sqm**;
- for Tower No. 03: **two podium levels added**, height increased from **96.95 m to 101.05 m**, and floors changed from **G+29 to S1+S2+30**; and
- ATS's own statement that Phase-I possession is now projected only by **30.06.2031**, whereas the BBA and HARERA order recognise **30.06.2023** as the due date — an extension of **8 years**.

These admissions from ATS's own documents strengthen the complainant's objection and cannot be treated as mere internal improvements.

7. Section 14 protection: the complainant's consent and BBA rights cannot be bypassed

7.1. The project must be completed in accordance with sanctioned plans, layout plans and specifications as approved by the competent authorities and as disclosed/furnished to the allottee.

7.2. Any addition or alteration in the sanctioned plans, layout plans, specifications, fixtures, fittings or amenities in respect of the apartment agreed to be taken cannot be made without the previous consent of the concerned allottee, except strictly permissible minor changes.

7.3. Any change which affects the complainant's apartment, tower, access, layout, amenities, specifications, common facilities, parking, services or possession obligation cannot be treated as a mere administrative change.

7.4. Therefore, ATS/Homekraft must be directed to file a **BBA-compliance chart** confirming, item by item, that the revised plan does not reduce or alter the complainant's rights under the Agreement to Sell/BBA.

8. Section 19 protection: information and stage-wise completion schedule

8.1. The complainant is entitled to obtain sanctioned plans, layout plans, specifications and such other information as provided under the Act, Rules and the Agreement for Sale.

8.2. The complainant is also entitled to know the stage-wise time schedule of completion of the project, including water, sanitation, electricity and other amenities and services agreed between the promoter and the allottee.

8.3. Therefore, ATS/Homekraft must be directed to provide a unit-specific and tower-specific completion schedule, not merely a general or vague statement.

9. Delay compensation and continuation of pre-EMI/EMI liability

9.1. The agreed possession date was **30.06.2023**. Therefore, delay has already occurred.

9.2. The complainant does not waive the right to claim delay interest/compensation from **01.07.2023** till actual lawful possession.

9.3. This claim is in addition to, and not in substitution of, the specific pre-EMI/EMI relief already granted by HARERA.

9.4. ATS/Homekraft must not be permitted to argue that payment of pre-EMI/EMI excuses delay or bars delay compensation. Both arise from different obligations:

- pre-EMI/EMI obligation arises from the builder's subvention/payment commitment and has been recognised in the order;
- delay interest/compensation arises from failure to deliver possession by the agreed date and continues till lawful possession.

9.5. Revised plans, increase in FAR/density, change of developer, pending approvals or internal project restructuring cannot be used to stop, reduce or postpone the pre-EMI/EMI obligation or delay-compensation liability.

10. No extra charges to be imposed on the existing allottee

10.1. The complainant must not be burdened with any additional cost arising from:

- revised building plans;
- increase in FAR;
- increase in density;

- change of developer;
- administrative charges;
- revised EDC/IDC;
- infrastructure augmentation;
- approval charges;
- escalation;
- enhanced maintenance burden;
- club/common-area burden;
- parking or utility burden;
- delay caused by the promoter; or
- any past default or dues of the promoter.

10.2. Any cost of revised planning, approval, additional construction, delay, funding, EDC/IDC dues, bank guarantees or change of developer must be borne by the promoter/developer and not by the existing allottee.

11. Compensation/rebate for FAR/density prejudice

11.1. If the revised plan results in increased FAR, increased density, additional construction, additional units or additional population load affecting the complainant's use and enjoyment of the unit and project facilities, the complainant is entitled to appropriate monetary protection.

11.2. Such protection may include:

- proportionate rebate in sale consideration;
- compensation for dilution of amenities/common services/open areas;
- no additional charges for revised-plan consequences;
- additional infrastructure and amenities at developer's cost;
- delay interest till actual lawful possession; and
- option to seek further compensation before the competent forum/adjudicating officer if prejudice is established.

11.3. The complainant reserves the right to quantify and pursue such compensation after ATS/Homekraft files certified technical data and the complete impact report.

12. No paper possession and no coercive possession documents

12.1. ATS/Homekraft should not be permitted to issue a paper offer of possession merely to stop pre-EMI/EMI or delay-compensation liability.

12.2. A valid offer of possession must be only after:

- occupation certificate/completion certificate, as applicable;
- actual completion of Unit No. 3051;
- completion of Tower No. 03 services;
- operational lifts;
- electricity supply;
- water supply;
- sewerage/STP connection;
- fire-safety compliance;
- motorable access;
- parking readiness;
- functional common services;
- no illegal or coercive demand;
- inspection opportunity to the allottee; and

- no forced waiver/satisfaction undertaking.

12.3. The complainant should not be compelled to sign any document stating that all work is satisfactory, all claims are waived, delay compensation is settled, no defects exist, no claim survives or no objection remains. Any such document, if made a condition for possession, would be coercive, unfair and contrary to RERA.

12.4. The complainant reserves the right to take possession under protest and without prejudice to claims for delay, defects, compensation, FAR/density prejudice, monetary dues and non-compliance.

13. Binding milestone schedule required

13.1. ATS/Homekraft must be directed to file a binding, date-wise and verifiable catch-up milestone schedule specifically for **Tower No. 03 and Unit No. 3051**.

13.2. The schedule must be certified by the project architect/engineer and must disclose the present status and target dates for:

- structure;
- brickwork/blockwork;
- plaster;
- flooring;
- doors/windows;
- internal finishing;
- MEP works;
- lifts;
- fire-fighting system;
- water supply;
- sewerage/STP;
- electricity connection/load;
- DG backup;
- internal roads/access;
- parking;
- tower services;
- common services;
- club/common amenities;
- occupation/completion certificate;
- inspection by the complainant;
- defect rectification; and
- actual physical possession.

13.3. Suggested compliance directions:

Timeline	Direction sought
Within 7 days	Compliance affidavit regarding the HARERA order dated 18.04.2024
Within 7 days	Month-wise pre-EMI/EMI statement showing amount paid, amount outstanding and future payment mechanism
Within 7 days	Direct payment arrangement with the financial institution till lawful possession

Timeline	Direction sought
Within 15 days	Tower-wise construction status, specifically Tower No. 03 and Unit No. 3051
Within 15 days	Updated completion-certificate/ occupation-certificate status
Within 15 days	Date of physical possession of Unit No. 3051
Within 15 days	Escrow account details including credit and debit records
Within 30 days	BBA-compliance chart comparing original commitments with revised plan
Within 30 days	Certified technical impact report on Unit No. 3051 and Tower No. 03
Monthly	Progress report with photographs and architect/engineer certificate
Final fixed date	Lawful offer of possession after OC/CC and completion of essential services

13.4. Any further default should automatically invite legal consequences, execution action, costs, interest and appropriate penal proceedings.

14. Escrow account, fund utilisation and project funding

14.1. In terms of the HARERA order and the allottee’s statutory rights, ATS/Homekraft must disclose the latest escrow account details of the project including credit and debit records.

14.2. The complainant is entitled to know whether project funds have been maintained and utilised properly and whether the project has sufficient funding for completion without imposing any additional burden on existing allottees.

14.3. ATS/Homekraft must be directed to file:

- latest escrow account statement;
- credit/debit record;
- CA certificate;
- engineer certificate;
- architect certificate;
- pending statutory dues;
- EDC/IDC dues, if any;
- bank guarantees;
- project completion funding plan;
- statement of no additional burden on the complainant; and
- details of any diversion/shortfall, if any.

15. Execution/enforcement of the HARERA order

15.1. The certified copy of the order dated 18.04.2024 must be treated as the executable and binding order.

15.2. Since ATS has failed to comply within the time granted, the complainant seeks immediate enforcement under the RERA Act and applicable execution provisions.

15.3. ATS/Homekraft should be directed to file a compliance affidavit within 7 days disclosing:

- total pre-EMI/EMI payable up to date;
- amount already paid;
- amount outstanding;
- month-wise default;
- future direct-payment mechanism to the bank;
- proof of payment;
- completion-certificate status;
- date of physical possession;
- escrow account details;
- construction status of Tower No. 03/Unit No. 3051; and
- reasons for non-compliance with the order.

15.4. In case of continued default, recovery and enforcement proceedings may be initiated, including recovery of monetary dues as arrears of land revenue and other consequences permissible under law.

16. Specific rebuttal to ATS position

16.1. If ATS contends that documents have now been provided, the answer is that mere supply of documents does not cure:

- past non-compliance with the HARERA order;
- non-payment/non-reimbursement of pre-EMI/EMI;
- non-disclosure of possession date;
- non-disclosure of escrow account details;
- delay beyond 30.06.2023;
- increased FAR/density prejudice;
- absence of unit-specific impact report; and
- absence of a binding completion schedule.

16.2. If ATS contends that revised plans have authority approval, the answer is that planning approval does not extinguish the complainant's BBA rights, RERA rights, delay rights or rights under the HARERA order.

16.3. Even if ATS contends that change of developer will help completion, that contention cannot grant time extension, cannot dilute liabilities, cannot burden the complainant with extra charges and cannot defer execution of the order.

16.4. In the event ATS contends that the complainant did not raise objections at an earlier point of time, it is submitted that mere silence, non-response, delayed response, general public notice, website publication, or alleged intimation cannot be treated as constituting valid consent, waiver, acquiescence, estoppel, or deemed no-objection against the complainant. The complainant's rights under the Agreement to Sell/BBA and the HARERA order dated 18.04.2024 are vested and crystallised rights, and no prejudice can be caused thereto unless there is a clear, specific, informed, and legally sustainable waiver on the part of the complainant. Without prejudice, it is further submitted that any subsequent forwarding of documents by ATS cannot retrospectively validate prior non-compliance, nor can it extinguish the complainant's pre-existing rights relating to possession, delay compensation, pre-EMI/EMI liability, BBA compliance, and execution of the HARERA order.

16.5. If ATS contends that an offer of possession will be made later, the answer is that possession must be lawful, complete, OC/CC-backed, BBA-compliant and preceded by inspection. Paper possession cannot stop monetary liability.

16.6. ATS's email reply dated on or about **May 2026** (in response to the complainant's email dated **17.05.2026**) expressly treats HARERA-order compliance as unrelated to the plan-revision exercise, refuses to confirm that silence shall not be treated as consent, and proposes possession only by **30.06.2031**. ATS also misspells the DTCP permission as **ZP-983-II** instead of **ZP-938-II**. These responses confirm evasion rather than compliance.

16B. Point-wise rejoinder to ATS email reply (13 points)

S.No.	Complainant's demand	ATS response (summary)	Complainant's rejoinder
1	Copy of DTCP permission ZP-938-II/SD(RD)/2026/15567 dated 04.05.2026	Enclosed; also uploaded on website	Partial compliance only. ATS misspells memo as ZP-983-II . Authenticity may be verified with DTCP/STP Gurugram.
2	Earlier sanctioned building/layout plans	Enclosed site plan; also on website	The website still lacks complete, downloadable, tower-wise and unit-wise plans. Partial upload is insufficient.
3	Revised plans showing all changes	Enclosed overall site plans	Overall site plans alone are insufficient; tower-wise, floor-wise and unit-wise drawings for Tower 03 / Unit 3051 are required.
4	Item-wise comparative statement	Comparative chart enclosed	Chart shows adverse changes: units 522→734 , parking 999→957 , green area 14345.86→10934.25 sqm , increased density.
5	Tower/unit impact note for Tower 03 / Unit 3051	Refer comparative chart	Unacceptable. Tower 03 changes include podium levels, height 96.95→101.05 m , floors G+29→S1+S2+30 .
6	FAR, density, parking, club details	Refer comparative chart	Increased project intensity with reduced parking/green area; not mere improvements. No consent without full disclosure.
7	Fire safety, lifts, possession, OC/CC	Generic assurances; possession 30.06.2031	Critical admission: 8-year extension beyond BBA/HARERA date of 30.06.2023 . HRERA timeline reference does not cure breach.
8	Applications, undertakings, affidavits	Inspect at Noida or approach STP/HARERA	Non-compliance; affected allottee entitled to actual supply, not conditional inspection.
9	Proof of individual notice to complainant	Public notices and allottee communications	Not answered. No email/postal/courier proof of service on Unit 3051.

S.No.	Complainant's demand	ATS response	Complainant's rejoinder
10	No deemed consent from silence	Request for consent instead	Rejected. Direct refusal to give required confirmation.
11	Fresh 30-day period from individual supply	Policy compliance; office visit offered	Rejected. Partial supply with evasive answers does not start a valid objection period.
12	HARERA order obligations remain binding	Query treated as unrelated to plan revision	Rejected. Order dated 18.04.2024 is already binding; certified copy confirms enforceability.
13	Construction status, OC/CC, possession, escrow	Referred back to Point 12	Rejected. Continuing breach of disclosure directions in the HARERA order.

16A. Approval / recognition of revised plan and change of developer must be subject to 100% execution of the HARERA order

16A.1. It is respectfully submitted that the respondent/promoter should not be permitted to seek, obtain, rely upon, or act upon any approval, recognition, registration amendment, endorsement, permission or acceptance concerning the revised plan, increased FAR/density, change of developer/promoter, change in project configuration or continuation of project by any new entity, unless and until there is **100% execution and compliance of the HARERA order dated 18.04.2024** in favour of the present complainant/allottee.

16A.2. The existing order of the Hon'ble Authority is not a mere formality. It is a binding adjudicated order recognising the complainant's rights and directing, inter alia, payment/reimbursement of pre-EMI/EMI, continued payment till offer of possession, disclosure of completion-certificate status, disclosure of possession date and disclosure of escrow-account details. The respondent cannot be allowed to first remain in default of the said order and thereafter seek benefit of revised plans, increased FAR/density, change of developer or any further project permission.

16A.3. Compliance of the HARERA order must be treated as a **condition precedent** before the respondent/promoter is allowed to take advantage of any revised plan, amended project registration, change of developer or altered project configuration. A promoter who has not complied with an existing order in favour of an allottee should not be permitted to secure further regulatory benefit to the prejudice of the same allottee.

16A.4. Therefore, the complainant respectfully prays that the Hon'ble Authority may direct that no approval, endorsement, acceptance, recognition, RERA registration amendment, extension, revised-plan recognition, change-of-developer recognition or permission enabling the new/promoted/transferee entity to proceed against the interest of the complainant be granted or acted upon until the respondent files proof of **complete and actual compliance** of the order dated 18.04.2024.

16A.5. In the alternative, without prejudice and without acceptance of the validity, regularity or binding effect of any planning or administrative permission that may have been granted by DTCP or any other authority, the same may kindly be recorded as being **strictly subject to** the complainant's crystallised BBA rights, the HARERA order dated 18.04.2024, payment of all outstanding pre-EMI/EMI, disclosure of all ordered information, delay-compensation rights, no-extra-charge protection and lawful possession of Unit No. 3051.

16A.6. ATS/Homekraft/Hasta may be directed to first file a **100% compliance affidavit** supported by documentary proof, including:

- month-wise pre-EMI/EMI calculation;
- proof of reimbursement/payment already made;

- amount still outstanding, if any;
- direct-payment arrangement with the financial institution till lawful offer of possession;
- completion-certificate / occupation-certificate status;
- definite date of physical possession of Unit No. 3051;
- escrow-account details with credit and debit records;
- tower-wise construction status of Tower No. 03;
- unit-specific status of Unit No. 3051;
- confirmation that no additional charge arising from revised plan/change of developer shall be imposed on the complainant; and
- confirmation that all rights under the BBA and HARERA order remain fully binding on the existing as well as proposed/new developer.

16A.7. Unless such complete compliance is first established, any further permission or approval in favour of the promoter/new developer would cause serious prejudice to the complainant and would indirectly reward non-compliance of a binding order of the Hon'ble Authority.

17. Prayers / directions sought

In view of the above, it is respectfully prayed that the competent authority may be pleased to direct ATS/Hasta/Homekraft, jointly and severally as applicable, to:

1. comply immediately with the HARERA order dated 18.04.2024;
2. direct that no revised plan, amended RERA registration, change of developer/promoter, extension, endorsement, recognition or further project permission be granted, recognised or acted upon to the prejudice of the complainant until 100% execution/compliance of the HARERA order dated 18.04.2024 is proved by affidavit and documents;
3. direct that any permission/approval already granted by DTCP/RERA/any authority shall remain strictly subject to the complainant's BBA rights, HARERA-order rights, pre-EMI/EMI rights, delay-compensation rights, no-extra-charge protection and lawful possession rights;
4. pay/reimburse all pre-EMI/EMI already paid by the complainant/allottee;
5. directly pay all future pre-EMI/EMI to the financial institution till lawful offer of possession;
6. file a month-wise statement of all pre-EMI/EMI paid, outstanding and payable;
7. pay delay interest/compensation from 01.07.2023 till actual lawful possession, without prejudice to the complainant's right to pursue further compensation;
8. disclose completion-certificate/occupation-certificate status;
9. disclose the date of physical possession of Unit No. 3051;
10. disclose latest escrow account details including credit and debit records;
11. file a binding, date-wise milestone schedule for Tower No. 03 and Unit No. 3051;
12. file monthly progress reports with photographs and architect/engineer certificates;
13. file a BBA-compliance chart showing that the revised plan does not reduce, alter or prejudice the complainant's unit, specifications, amenities, services, parking, possession rights or monetary rights;
14. file a certified technical impact report specifically for Unit No. 3051 and Tower No. 03;
15. clarify the effect of increased FAR/density on the complainant's unit, common services, parking, safety, amenities and possession timeline;
16. ensure that no additional charge is imposed on the complainant on account of revised plans, increased FAR/density, change of developer, EDC/IDC, approvals, escalation, infrastructure augmentation or delay;
17. compensate/rebate the complainant for any demonstrated prejudice caused by increased FAR/density or dilution of amenities/services/common facilities;
18. ensure that the change of developer, if permitted/approved, is expressly subject to all pending BBA, statutory and HARERA-order obligations;

19. restrain ATS/Homekraft from issuing paper possession merely to stop pre-EMI/EMI or delay-compensation liability;
 20. direct that possession shall be offered only after OC/CC and completion of the unit, tower services and essential infrastructure;
 21. allow inspection of the unit and tower/common services before possession;
 22. restrain ATS/Homekraft from compelling the complainant to sign any waiver, satisfaction note, no-claim undertaking or defect-free declaration as a pre-condition for possession;
 23. permit possession, if offered, to be taken under protest and without waiver of claims;
 24. initiate appropriate enforcement/recovery proceedings in case of non-compliance;
 25. initiate necessary penal proceedings in case of violation of the Act or non-compliance with the order; and
 26. award costs of representation, correspondence, legal consultation and proceedings.
-

18. Closing submission

It is respectfully submitted that ATS/Homekraft cannot be permitted to rely upon revised plans, increased FAR/density or change of developer as a shield against already crystallised rights of the complainant. The complainant's rights under the BBA and the HARERA order dated 18.04.2024 must be protected first. Any revised plan or change of developer must remain expressly subject to the complainant's existing unit rights, monetary rights, delay rights, pre-EMI/EMI rights, possession rights, inspection rights and compensation claims.

The complainant therefore requests that the present objection/rejoinder be taken on record and that no action be taken on ATS's reply to the prejudice of the complainant unless the above safeguards, disclosures, payments and milestone directions are first complied with.

Reply by:

Mr. Vijyant Agarwal
Existing Allottee / Complainant
Unit No. 3051, Tower No. 03, Type-D
ATS Grandstand Phase-I, Sector 99A, Gurugram

Co-allottee:

Mrs. Vineeta Agarwal

Date: 03.06.2026

Place: New Delhi

Enclosures

1. **Annexure 1** — HARERA order dated 18.04.2024 in Complaint No. 4463 of 2021.
2. **Annexure 2** — Certified copy of HARERA order dated 18.04.2024, including Section 39 rectification proceedings dated 08.08.2024.
3. Agreement to Sell / BBA dated 25.10.2018, relevant pages (*to be added if separate copy available*).
4. **Annexure 5** — Letter dated 23.10.2018 regarding pre-EMI/payment arrangement.
5. **Annexure 3** — ATS reply and annexures, including revised-plan documents and comparative chart.
6. **Annexure 4** — Previous representation/objection sent by the allottee.
7. **Annexure 6** — Bank/pre-EMI/EMI payment records.

On Sat, 30 May 2026 at 18:40, Grandstand.customercare@homekraft.in <grandstand.customercare@homekraft.in> wrote:

Dear Sir,

Greetings for the day!

Please find the attached reply to your queries raised.

Thanks & Regards,

Team CRM,

ATS Grandstand

From: Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

Sent: 17 May 2026 13:40

To: Rahul Mangla <Rahul.Mangla@homekraft.in>; Getamber Anand <Getamber@atsgreens.com>; Grandstand.customercare@homekraft.in; getamberanand@atsgreen.com; email@atsgreens.com; Ats Pratik Verma Hk <prateek.verma@homekraft.in>; udaivir.anand@atsgreen.com; getamber@atsgreen.com

Cc: soibal.gupta@outlook.com; Soibal Gupta <adv.soibal.gupta@gmail.com>

Subject: Representation / Objection Regarding Non-Service of Individual Notice and Non-Disclosure of Revised Sanctioned Plans of the project GRANDSTAND sector 99A ,Gurugram

You don't often get email from prof.vijyant.agarwal@gmail.com. [Learn why this is important](#)

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

From:
Mr. Vijyant Agarwal
Allottee / Complainant
Unit No. 3051, Tower No. 03, Type-D
ATS Grandstand Phase-I, Sector 99A, Gurugram
Co-allottee: Mrs. Vineeta Agarwal
Address: House No. 07, Type V, Netaji Subhas University of Technology, Sector-03, Dwarka, New Delhi-110078
Email: [Prof.Vijyant.Agarwal@gmail.com]
Mobile: [9899308574]

To,
The CMD/Competent Authorities
M/s Hasta Infrastructure Pvt. Ltd. / ATS Realworth Pvt. Ltd. / Homekraft Infra Pvt. Ltd.
ATS Tower, Plot No. 16, Sector-135, Noida
Also at: Project Site Office, ATS Grandstand, Sector 99A, Gurugram

CC:

- 1.
- 2.
3. The Senior Town Planner, Gurugram, HSVP Complex, Sector-14, Gurugram, Haryana
- 4.
- 5.
- 6.
7. The Director, Town & Country Planning, Haryana, Chandigarh
- 8.
- 9.
- 10.
11. Haryana Real Estate Regulatory Authority, Gurugram
- 12.

Subject: Non-service of individual notice, non-availability of complete sanctioned/revised plans on the project website, and reservation of objection / non-consent regarding proposed change of developer and revision in building plans — ATS Grandstand Phase-I, Sector 99A, Gurugram, Unit No. 3051

References

- 1.
- 2.
3. My allotment / Agreement to Sell dated 25.10.2018 for Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram.
- 4.
- 5.
- 6.
7. HARERA, Gurugram Order dated 18.04.2024 in Complaint No. 4463 of 2021,
8. *Vijyant Agarwal & Anr. v. ATS Realworth Pvt. Ltd.*
- 9.
- 10.
- 11.
12. DTCP in-principle approval bearing Memo No. LC-2806/JE(AK)/2025/46794 dated 10.12.2025 regarding change of developer from Hasta Infrastructure
13. Pvt. Ltd. to M/s Homekraft Infra Pvt. Ltd. in respect of Licence No. 37 of 2013 dated 03.06.2013.
- 14.
- 15.
- 16.
17. Public notice concerning the proposed change of developer, referring to the website
18. www.gurgaonsector99a.com.
- 19.

Respected Sir/Madam,

I am an existing allottee of Unit No. 3051, Tower No. 03, Type-D in the project ATS Grandstand Phase-I, Sector 99A, Gurugram. I am constrained to place on record serious objections and reservations regarding the manner in which the proposed change of developer and the revision in building plans are being processed and communicated to the allottees.

I have come to know from documents/publicly circulated material that the project is undergoing important changes, including change of developer and revision in building plans. However, I have not been personally or individually informed by the company through email, registered post, speed post, courier, or any proper allottee-specific communication regarding:

- 1.
- 2.

3. the proposed change of developer from Hasta Infrastructure Pvt. Ltd. to M/s Homekraft Infra Pvt. Ltd.;
- 4.
- 5.
- 6.
7. the revised building plans and the changes proposed in comparison with the earlier sanctioned plans;
- 8.
- 9.
- 10.
11. the impact of such changes on my unit, tower, common areas, amenities, car parking, access, layout, specifications, completion schedule,
12. possession, and statutory approvals; and
- 13.
- 14.
- 15.
16. the time period and manner in which objections/observations/consent are required to be submitted.
- 17.

The DTCP in-principle approval for change of developer itself required that all allottees be informed about the proposed change through newspaper publication, website publication, and also through their email IDs, so that they may submit objections within the stipulated period. In addition, the public notice/communication refers to www.gurgaonsector99a.com as the website where relevant documents are stated to be available. Further, the notices issued to another allottee states that the permission dated 04.05.2026, along with the copy of earlier sanctioned and revised plans showing changes, has been uploaded on the said web portal.

However, on checking the said website, I have not found complete, clear, downloadable, and verifiable information/documents as represented, including the earlier sanctioned plans and the revised plans showing changes. In the absence of such complete disclosure, no allottee can meaningfully examine the proposed changes or submit an informed objection/consent.

It is specifically recorded that I have not received any individual communication from the company regarding the aforesaid changes, despite the company having my allottee details, email ID, address and complete records, including records arising from the earlier HARERA proceedings. Therefore, any attempt to treat non-response, silence, or lack of objection from my side as “consent”, “deemed consent”, or “no objection” would be wholly incorrect, unfair, and unacceptable.

I further state that the earlier HARERA Order dated 18.04.2024 in Complaint No. 4463 of 2021 has already recognised my status as complainant/allottee and has issued directions concerning pre-EMI/EMI, disclosure of project status, date of possession, and escrow account details. Therefore, the company is already under a heightened obligation to deal with my allotment transparently and to disclose all project-related information affecting my rights.

Accordingly, I call upon you to provide the following within 7 days of receipt of this letter:

- 1.
- 2.
3. A complete copy of DTCP permission bearing Memo No. ZP-938-II/SD(RD)/2026/15567 dated 04.05.2026.
- 4.
- 5.
- 6.
7. A complete copy of the earlier sanctioned building plans/layout plans applicable to the project.
- 8.
- 9.
- 10.
11. A complete copy of the revised building plans/layout plans showing all proposed changes.
- 12.
- 13.
- 14.

15. A comparative statement showing, item-wise, the difference between the earlier sanctioned plans and the revised plans.
- 16.
- 17.
- 18.
19. A tower-wise and unit-wise impact note specifically for Tower No. 03 and Unit No. 3051.
- 20.
- 21.
- 22.
23. Details of any change in FAR, density, number of units, tower layout, height, basement, parking, green area, club/community facilities,
24. fire safety arrangements, approach road, services, utility areas, common areas, lifts, specifications, possession schedule, and occupation/completion approvals.
- 25.
- 26.
- 27.
28. Copy of all applications, approvals, permissions, undertakings and affidavits filed before DTCP/HRERA/other authorities in relation to
29. the change of developer and revised building plans.
- 30.
- 31.
- 32.
33. Proof of individual notice allegedly issued to me, if any, including date, mode of service, email delivery record, postal/courier receipt
34. and the exact contents of such notice.
- 35.
- 36.
- 37.
38. Written confirmation that no silence/non-response from me shall be treated as consent/no-objection.
- 39.
- 40.
- 41.
42. Written confirmation that a fresh period of 30 days for submitting objections/observations shall be counted only from the date on which
43. complete documents are actually supplied to me individually.
- 44.
- 45.
- 46.
47. Written confirmation that all existing rights, claims, liabilities, obligations, timelines, pre-EMI/EMI commitments, possession obligations,
48. and obligations arising out of the HARERA Order dated 18.04.2024 shall remain fully binding on the existing and proposed developer/promoter.
- 49.
- 50.
- 51.
52. Updated status of construction, completion/occupation certificate, expected date of possession, and latest escrow account details including
53. credit/debit records, as already directed in the HARERA Order dated 18.04.2024.
- 54.

Until the above documents and clarifications are supplied, my objection/reservation is hereby expressly recorded. I do not consent to any proposed change of developer, revision in building plans, or any other project alteration that affects or may affect my rights, my unit, the agreed specifications, the project amenities, the possession schedule, or any obligation of the promoter/developer.

This letter may also be treated as a formal request to the company to immediately place complete, clear, readable and downloadable documents on www.gurgaonsector99a.com, including the earlier sanctioned plans, revised plans, approval memo, comparative chart, and allottees' notice package. Merely making a general statement that documents have been uploaded, without actually making the complete documents available, cannot constitute proper disclosure.

You are requested to respond in writing by email and by post. In case no satisfactory response is received within 7 days, I shall be constrained to place the matter before the Senior Town Planner, DTCP Haryana, HRERA Gurugram and other competent authorities, including for recording that the allottee was not individually informed and that the objection/consent process was not conducted in a fair, transparent and legally valid manner.

This letter is issued without prejudice to all my rights, remedies, claims and contentions in law and equity, including those arising from the Agreement to Sell, the Real Estate (Regulation and Development) Act, 2016, the HARERA Order dated 18.04.2024, and all applicable DTCP policies/approvals.

Yours faithfully,

Vijyant Agarwal
Allottee / Complainant
Unit No. 3051, Tower No. 03, Type-D
ATS Grandstand Phase-I, Sector 99A, Gurugram

Enclosures:

- 1.
- 2.
3. Copy of HARERA Order dated 18.04.2024, Complaint No. 4463 of 2021
- 4.
- 5.
- 6.
7. Copy of DTCP in-principle approval dated 10.12.2025, if available
- 8.
- 9.
- 10.
11. Copy/screenshot of public notice / website reference
- 12.

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